

SENATE No. 666

The Commonwealth of Massachusetts

PRESENTED BY:

Bruce E. Tarr

To the Honorable Senate and House of Representatives of the Commonwealth of Massachusetts in General Court assembled:

The undersigned legislators and/or citizens respectfully petition for the adoption of the accompanying bill:

An Act relative to pesticide applications.

PETITION OF:

NAME:

Bruce E. Tarr

DISTRICT/ADDRESS:

First Essex and Middlesex

SENATE No. 666

By Mr. Tarr, a petition (accompanied by bill, Senate, No. 666) of Bruce E. Tarr for legislation relative to pesticide applications. Environment and Natural Resources.

[SIMILAR MATTER FILED IN PREVIOUS SESSION
SEE SENATE, NO. 575 OF 2023-2024.]

The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act relative to pesticide applications.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 The Massachusetts Pesticide Board, in consultation with the State Reclamation and
2 Mosquito Control Board, is hereby authorized and directed to provide by regulation for
3 alternative means by which private property may be designated for exclusion from wide area
4 applications of pesticides and mosquito control applications of pesticides approved by the State
5 Reclamation and Mosquito Control Board under 333 CMR 13.03, in lieu of the submission of a
6 certified letter to the clerk of the municipality in which the property is located. Said alternatives
7 shall include, but need not be limited to (i) allowing municipalities to include an “opt out”
8 provision on their annual city or town census forms by which residents can elect to exclude their
9 property from such applications of pesticides, and (ii) allowing residents to submit a hand-
10 delivered letter to the municipal clerk that includes the name, address and telephone number (if
11 any) of the person requesting the exclusion, the address of the property to be excluded, and a

- 12 description of the types of pesticide application programs for which exclusion is requested. Said
- 13 changes to 333 CMR 13.03 shall be implemented at least 90 days in advance of the
- 14 commencement of the 2026 pesticide spraying season.